

Afrikaner Rights Advocacy Initiative

30 June – Boilerplate Denials

NOTICE OF INELIGIBILITY FOR CONTINUED PROCESSING FOR RESETTLEMENT

"We are writing to inform you that, following review, USCIS found your application to be ineligible for continued processing for resettlement to the United States at this time.

This cannot be appealed."

Justice with Integrity



Refugee application
i-590 denied

ARAI – Advocacy Audit

**ARAI Petition for Systemic
Investigation 2026Y (v1.1)**

**BEFORE THE OFFICE OF THE CITIZENSHIP AND IMMIGRATION SERVICES
OMBUDSMAN
DEPARTMENT OF HOMELAND SECURITY
WASHINGTON, D.C.**

IN RE: SYSTEMIC ADJUDICATIVE MALADMINISTRATION, DUE PROCESS VIOLATIONS, AND ARBITRARY PATTERNS OF INELIGIBILITY DETERMINATIONS WITHIN THE SOUTH AFRICAN/AFRIKANER U.S. REFUGEE ADMISSIONS PROGRAM (USRAP) PATHWAY

**FORMAL PETITION FOR SYSTEMIC INVESTIGATION AND ADMINISTRATIVE REVIEW
TO:**

*The Office of the Citizenship and Immigration Services Ombudsman (CISOMB)
The Committees on the Judiciary, United States House of Representatives and United States Senate
The Domestic Policy Council, The White House*

DATE: July 22, 2026

SUBMITTED BY: Coalition of Affected Afrikaner USRAP Applicants and Advocates

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I. INTRODUCTION AND JURISDICTIONAL STATEMENT

This formal petition is submitted pursuant to the statutory authority of the CIS Ombudsman under 6 U.S.C. § 272(f) to “identify areas in which refugees, asylees, and other beneficiaries experience problems in dealing with USCIS” and to “propose changes in the administrative practices of USCIS.” Furthermore, this petition serves as a formal notice of administrative oversight for the Judiciary Committees of the United States Congress and the executive oversight mechanisms of the White House.

This petition addresses a severe, systemic breakdown in the administration of the U.S. Refugee Admissions Program (USRAP) specifically affecting the South African/Afrikaner in-country refugee pathway. While the Executive Branch maintains discretionary authority over refugee admissions pursuant to INA § 207 (8 U.S.C. § 1157), the operational implementation of this program is bound by the Immigration and Nationality Act (INA), published USCIS regulations, the USCIS Policy Manual, binding administrative and judicial precedent, and constitutional principles of administrative law.

Recent operational developments—specifically, mass identical “boilerplate” ineligibility notices issued on or around 30 June 2026, abrupt cancellations of confirmed departure flights for pre-cleared applicants, systematic portal access revocation, and arbitrary family

fragmentation—demonstrate an unannounced, arbitrary, and capricious shift in administrative practice that warrants immediate federal intervention.

II. STATEMENT OF FACTS AND SYSTEMIC PATTERNS

Evidence compiled from a documented cohort of applicant files reveals a uniform, systemic pattern of maladministration across multiple processing stages handled by the Resettlement Support Center (RSC Africa / CWS), the Department of State, and U.S. Citizenship and Immigration Services (USCIS):

1. **The “Bait-and-Switch” Adjudication Pattern:** *Applicants successfully completed multi-tier administrative milestones, including initial pre-screening, biometric collection, security background vetting, medical examinations (Form I-693), and Cultural Orientation (CO). Many received formal notifications of pending travel or were assigned firm departure dates. Subsequently, without individualized review or substantive explanation, applicants received identical, generic notices declaring them “ineligible for continued processing.”*
2. **Disparate Cohort Treatment:** *While standard refugee processing timelines are known, certain discrete processing batches (e.g., specific arrival cohorts) experienced expedited handling, whereas the broader Afrikaner applicant pool was subjected to indefinite delays, repeated medical expirations at personal expense, and sudden administrative termination.*
3. **Revocation of Portal Access and Evidentiary Isolation:** *Within days of receiving mass ineligibility notices, applicants experience systemic termination of their online portal (MyCase) access. This practice actively prevents applicants from reviewing their case files, downloading submitted evidence, or preserving a record of their administrative history, directly impeding their right to seek meaningful review.*
4. **Arbitrary Family Fragmentation:** *Despite explicit program guidance requiring “hard-linked” family submissions to preserve family unity, recent adjudications have arbitrarily severed hard-linked units. Primary applicants, elderly dependents, or disabled family members have been approved while their essential care-givers, spouses, or dependent children have been abruptly denied, violating core humanitarian principles.*
5. **Procedural Coercion and Intimidation:** *Reports indicate applicants have been subjected to informal, undocumented pressures from processing agents—such as demands to sign restrictive confidentiality undertakings or informal counseling to “voluntarily withdraw” from the program—bypassing formal, record-based administrative procedures.*

III. LEGAL AND REGULATORY VIOLATIONS

The pattern of mass ineligibility determinations and administrative failures violates established U.S. immigration law, agency policy, and constitutional administrative standards:

A. Violation of Statutory Mandates for Individualized Adjudication

- **INA § 207 (8 U.S.C. § 1101(a)(42)):** *The statute defines a refugee based on individualized persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion. The issuance of mass, identical boilerplate denials without individual assessment of country conditions or statutory nexus constitutes a failure to execute the mandatory individualized review required by law.*
- **USCIS Policy Manual, Volume 3 (Refugees):** *Published agency guidance mandates transparent, fair, and individualized evaluations. Blanket batch-denials without reasoned articulation of specific factual or legal deficiencies violate the core tenets of the Policy Manual.*
- **Refugee, Asylum, and International Operations (RAIO) Training Standards:** *Adjudicators are bound by RAIO guidelines requiring non-adversarial interviews, proper exploration of nexus, and maintenance of a complete administrative record. The substitution of batch-level rejections for substantive adjudication departs from these standard operating procedures.*

B. Violation of Administrative Procedure Act (APA) Standards

- *While discretionary refugee admissions under INA § 207 are exempt from certain APA notice-and-comment rulemaking provisions, the executive agency remains strictly bound by the bedrock constitutional and administrative prohibition against arbitrary, capricious, or unannounced shifts in agency policy (Motor Vehicle Mfrs. Ass'n v. State Farm Mut. Auto. Ins. Co., 463 U.S. 29, 43 (1983); FCC v. Fox Television Stations, Inc., 556 U.S. 502 (2009)).*
- *An agency violates the APA when it acts without observance of procedure required by law, fails to provide a reasoned explanation for reversing course on active applications, or relies on undisclosed, unwritten internal criteria to adjudicate statutory benefits.*

C. Violation of International Norms and Principles of Family Unity

- **Customary International Law and UNHCR Family Unity Standards:** *The systematic fracturing of hard-linked family units—specifically isolating vulnerable, elderly, or disabled applicants from their immediate care-givers—contravenes established international humanitarian norms regarding the protection of the family unit, as recognized under international human rights instruments and incorporated into refugee administration best practices.*
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IV. PRAYER FOR RELIEF AND REQUESTED ACTIONS

In light of the severe procedural defects and due process violations documented herein, the petitioners respectfully request that the oversight authorities take the following immediate actions:

1. **Initiate a Formal Systemic Investigation:** Request that the CIS Ombudsman open an immediate systemic review under 6 U.S.C. § 272(f) into the operational practices of USCIS, RSC Africa, and the Department of State regarding the adjudication and mass ineligibility determinations of the South African/Afrikaner USRAP cohort.
2. **Issue an Administrative Hold:** Urge the Department of Homeland Security and the Department of State to place an immediate administrative hold on all unverified ineligibility determinations, portal closures, and flight cancellations for this cohort pending the completion of a full records audit and verification of backend data integrity.
3. **Congressional Oversight and Inquiry:** Request that the House and Senate Judiciary Committees exercise oversight authority by issuing a formal inquiry to USCIS demanding the disclosure of the legal memos, internal directives, or batch-processing criteria that authorized the 30 June 2026 mass notices.
4. **Restoration of Administrative Due Process:** Ensure that all affected applicants are provided with substantive, individualized written explanations detailing the precise factual and legal basis for any adverse action, along with a meaningful opportunity to review their records and submit rebuttals.

Respectfully submitted,

Representative for the Petitioners

Coalition of Affected Afrikaner USRAP Applicants

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